

23VECV02713 23VECV02713

County: los-angeles

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Case Number: 23VECV02713 Hearing Date: June 25, 2026 Dept: T

23VECV02713 Acuna v Perez

[TENTATIVE] ORDER: Defendant/Doe 1 Jetsae Castolo and Defendant Doe 2 Maria A. Sepulveda's Motion for Judgment on the Pleadings is DENIED.

Introduction

Defendant/Doe 1 Jetsae Castolo (Castolo) and Defendant Doe 2 Maria A. Sepulveda (Sepulveda) (collectively, Defendants) moved for judgment on the pleadings against Plaintiff Annette Acuna. (Plaintiff) Complaint. Defendants' motion placed into issue the first cause of action (COA) for premises liability and the second COA for negligence.

Discussion

Defendants argued that the two COAs failed to allege sufficient facts to plead a dangerous condition, breach, and causation and that the allegations are conclusory. Plaintiff expressly alleged that Defendants owned, managed, operated, and controlled the premises at the time of the incident. (Compl. par. GN-1.) Plaintiff alleged that the dangerous condition consisted of a step that was not visible due to the placement of two tables and no warning signs about the step were posted. (Compl. par. Prem. L-1.) Plaintiff further alleged that due to the concealed step, Plaintiff slipped and fell on the concealed step. (Compl. pars. Prem. L-1 and GN-1.) Because of these fact allegations, the Complaint sufficiently alleged facts to support the pleading elements of the two COAs and the allegations are not conclusory. Defendants' arguments are unpersuasive because the pleading requirement for negligence-based theories do not require specific-fact pleading. The facts alleged are sufficient to place Defendants on notice of the claims alleged against them. Further, the fact allegations supporting the two COAs also show that the pleading is not uncertain. Defendants' arguments are not persuasive.

The motion for judgment on the pleadings is DENIED.

IT IS SO ORDERED, CLERK TO GIVE NOTICE.